

sixty (60) calendar days of notice of entry of this order.

2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C25-01386
CASE NAME: LAUREN GLICKMAN VS. DOES 1 TO 30, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: ATHENA GLICKMAN**
FILED BY: GLICKMAN, LAUREN
TENTATIVE RULING:

Petitioner Lily Shirvanee, the duly appointed guardian ad litem herein, for the minor claimant Athena Glickman, filed a Petition for Approval of Compromise of Claim on or about April 24, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on August 3, 2025.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

7. 9:00 AM CASE NUMBER: C25-01837
CASE NAME: VINCIANE BUZENET VS. HI-HVAC, INC.
***HEARING ON MOTION FOR DISCOVERY**
FILED BY:
TENTATIVE RULING:

Plaintiff Vinciane Buzenet ("Plaintiff") filed a motion to compel further responses to special interrogatories and requests for production on April 13, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks further responses to Special Interrogatories, Set Two, and Requests for Production, Set Two (collectively, the "Discovery Requests"). The Motion to Compel was set for hearing on August 3, 2026. The motion is opposed.

Background

A case management conference ("CMC") was conducted April 30, 2026. In its CMC Order, the Court directed the parties to meet and confer regarding ongoing discovery disputes and to file a "Joint Separate Statement" addressing any unresolved disputes. See CMC Order filed May 6, 2026, ¶1.

Both parties describe meet and confer efforts on or around June 6, 2026. See Opposition, p. 3; see also Plaintiff's Reply ISO Motion to Compel filed July 20, 2026 (the "Reply"), p. 4. Defendant Hi-HVAC, INC. ("Defendant") provided supplemental responses on June 29, 2026. Reply, p. 2; Opposition, p. 2.

The parties filed a Joint Separate Statement on July 2, 2026, that details the requests which remained in dispute. Plaintiff filed the Reply on July 20, 2026, in which she acknowledges that additional disputes were resolved since filing the Joint Separate Statement. See Reply, p. 2.

The Discovery Requests which remain at issue in the Motion to Compel are the following:

1. **Special Interrogatory No. 11** (the “SROG”);
2. **Requests for Production of Documents Nos. 1, 5, 6, 10 and 11** (the “RFPs”).

Defendant filed an opposition on July 20, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Special Interrogatory No. 11

The party propounding interrogatories may move for an order compelling a further response if it deems the responses are evasive or incomplete. Code Civ. Proc. § 2030.300(a).

First, this response has been amended since the filing of the Joint Separate Statement. See **Exhibit A** of the Declaration of Mitchell R. Vanlandingham as part of Opposition (“Vanlandingham Decl.”), p. 7. In the Reply, Plaintiff maintains that the amended response is deficient for substantially the same reasons as the original. See Reply, p. 4 *et seq.*; see also Joint Separate Statement, p. 4.

The SROG asks Defendant to “describe all *steps* taken by Defendant to determine whether the lithium-ion battery had previously overheated or malfunctioned.” Joint Separate Statement, p. 4 (emphasis added). The amended response states that Defendant is unable to identify the subject battery, however, has never experienced related malfunctions with lithium-ion batteries prior. See **Exhibit A** of the Vanlandingham Decl., p. 7. As Plaintiff points out in the Reply, this response reaches a conclusion, but the call of the question is the *steps* taken to reach that conclusion. Even if the subject battery cannot be identified, the steps taken to conclude that there have never been any related issues should be described. For example, what records were reviewed or which, if any, knowledgeable persons were spoken to in reaching that conclusion? As such, the Court finds this response to be incomplete. The Motion to Compel is **GRANTED** as to this SROG and a further response shall be made.

Request for Production of Documents Nos. 1, 5, 6, 10, and 11

A party may move for an order compelling further response to a request for production of documents where a statement of compliance with the demand is incomplete. Code Civ. Proc. § 2031.310(a). Code of Civil Procedure section 2031.220 provides “[a] statement that the party to whom a demand for inspection . . . has been directed will comply with the particular demand shall state that the production . . . will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.”

Here, Plaintiff's concern is with the statements of compliance provided by Defendant, not with the documents produced. See Reply, p. 2. The RFPs all have substantially similar responses. They state "Responding Party will produce all responsive, non-privileged documents in its possession, custody, and control." See Joint Separate Statement, p. 5 *et seq.* The response to RFP No. 1 includes a qualifying statement that the responding party cannot determine with certainty which records relate to the purchase of the subject battery. Joint Separate Statement, p. 5. Nonetheless, it goes on to state similar language to the other RFPs. *Id.* The parties further agree that the responses are verified. See Opposition, p. 4; Reply, p. 2. As such, the Court finds that all responses comply with the requirements provided by Code of Civil Procedure section 2031.210 *et seq.*

The Motion to Compel is **DENIED** as to RFPs Nos. 1, 5, 6, 10, and 11.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Compel is **GRANTED IN PART** as to Special Interrogatory No. 11. Defendant shall serve a **verified** further amended response to the subject SROG **within thirty (30) calendar days** of notice of entry of this order.
2. The Motion to Compel is **DENIED IN PART** as to Requests for Production Nos. 1, 5, 6, 10, and 11.
3. Any and all sanctions requests are DENIED. However, the Court reserves jurisdiction regarding the consideration and imposition of any and all further sanctions as the Court may deem just and necessary pending compliance with this order.
4. The Court shall prepare the order after hearing.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING IN RE: MOT. FOR RECONSIDERATION ON SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed its Motion for Reconsideration of Monetary Sanctions on May 15, 2026 (the "Motion for Reconsideration"). The Motion for Reconsideration was initially set for hearing on July 20, 2026. Thereafter, the motion was continued to August 3, 2026. See Order entered June 10, 2026.